

24SMCV05842 24SMCV05842

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C09%2F15%2F2026

Source SHA-256: 96b5247723f03b828f14f2e905867cc113651e7915a0d16db6461cf18c59d424

Case Number: 24SMCV05842 Hearing Date: September 15, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

15, 2026

CASE NUMBER

24SMCV05842

MATTER

Request

for Default Judgment

This case arises from a business dispute. On December 4, 2024, Plaintiff Bijan Israel ("Plaintiff") filed suit against Defendants Mumford Holdings, LLC ("Mumford Holdings"); Terence Mumford ("Terence"); Bahram Zendedell ("Bahram"); and Does 1 to 300 alleging two causes of action for (1) fraud and (2) common counts. Plaintiff subsequently named via Amendments Assal "Ashley" Zendedel ("Ashley") and Shawn Zendedel ("Shawn") Doe Defendants 1 and 2, respectively.

Bahram was personally served with a copy of the summons and complaint on February 27, 2025 and was default was entered against Bahram on September 29, 2025. Terence was personally served with a copy of the summons and complaint on March 5, 2026, and default entered on April 15, 2026. Shawn was personally served with a copy of the summons and complaint on March 16, 2026, and default entered on August 7, 2026. Ashley was personally served with a copy of the summons and complaint on March 20, 2026, and default entered on August 7, 2026. Mumford Holdings was voluntarily dismissed on April 16, 2026. Doe Defendants 3 to 300 remain named in the litigation.

Plaintiff now requests entry of default judgment against Bahram, Terrence, Ashley, and Shawn in the amount of \$470,250, representing \$342,000 in special damages and \$128,250 in prejudgment interest. (See Ex. 3 to Default Prove-Up Package [form CIV-100].)

A. Doe Defendants

Although Plaintiff requests dismissal of the Doe Defendants as part of the prove-up briefing, Plaintiff has not submitted a written request for dismissal on Form CIV-110, nor made an oral motion to dismiss the remaining Doe Defendants.

B.

Damages

Plaintiff's Complaint seeks \$342,000 in special damages. (See Compl.) Therefore, Plaintiff does not seek damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

In support of the request, Plaintiff advances his own declaration, which provides:

In early January of the year 2022, myself along with each of the four Defendants, Bahram Zendedell, Terrence Mumford, Assal "Ashley" Zendedel, and Shawn Zendedel, entered into an agreement to conduct a lawful, licensed, adult-use Cannabis business to be generally operated in Los Angeles, California, which these Defendants were to manage, with at least myself acting as the tenant and manager of the planned business location. A true and correct copy of the planned lease is attached hereto as Exhibit 1 to this Declaration.

[...]

The agreement also called for me to provide (1)\$300,000.00 to obtain the required business licenses, and (2)\$42,000.00 towards additional commercial expenses. In carrying out this agreement, on or about February 23, 2022, I gave to these Defendants (1)a check in the amount of \$50,000.00, and cash, in the amount of \$292,000.00. A true and correct copy of that check is attached hereto as Exhibit 2 to this Declaration.

(Israel Decl. at pp. 1:28-2:15.) However, in support, Plaintiff advances only a single check for \$50,000 written out to "Mumford Holding LLC," which was dismissed from the action. There is no evidence substantiating Plaintiff's claim that he gave the defaulted defendants either the \$50,000 check or \$292,000 in cash.

Therefore, Plaintiff has not adequately substantiated the requested damages against the defaulted defendants.

C.
Prejudgment Interest

Because Plaintiff has not adequately substantiated the requested damages, Plaintiff has not adequately substantiated the principal balance upon which he seeks prejudgment interest. As such, the Court cannot award prejudgment interest as requested.

CONCLUSION

Because the Doe

defendants remained named in the litigation and because Plaintiff has not adequately substantiated the requested damages against the defaulted defendants, the Court denies Plaintiff's Request for Entry of Default Judgment without prejudice.

Further, upon discussion with Plaintiff, the Court will continue the Order to Show Cause re Entry of Default Judgment to permit Plaintiff time to file a renewed Request for Entry of Default Judgment.

Unless Plaintiff waives notice, the Clerk of the Court shall provide notice of the Court's ruling.

DATED: September 15, 2026 /s/ _____

Michael
E. Whitaker

Judge
of the Superior Court